

Calendar Line # 8
Case Name Mid-Century Insurance Company vs Justin Collins
Case No. 25CV477635
Motion to Compel Responses to Request for Production of Documents, Set One and Sanctions <u>I. BACKGROUND</u> This case stems from a subrogation claim arising from April 24, 2024 motor-vehicle accident. On October 15, 2025, Plaintiff Mid-Century Insurance Company (“Mid-Century”) filed a Complaint for damages in the amount of \$41,216.86 against Defendant Justin Collins (“Collins”). Before the Court is Plaintiff Mid-Century’s motion to compel verified responses to request for production of documents (“RFPD”), set one, and sanctions that was filed on May 29, 2026. The motion is accompanied by a proof of service indicating electronic mail service on Defendant Collins’s former attorneys of record, John J. Wasinda. Subsequently, Defendants’ counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and represented that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared as defendant’s counsel and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted. The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion to compel verified response to RFPD, memorandum of points and authorities in support of the motion; Declaration of Megan A. Sarraill and attached Exhibits A- C (totaling 38 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2031.020, subdivision (b), a party may make a demand for production of documents and propound interrogatories without leave of court at any time 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first. (Code Civ. Proc., § 2031.020, subd. (b); Code Civ. Proc., § 2030.020, subd. (b)). The demand for production of documents is not limited by number, but the request must comply with the formatting requirements in Code of Civil Procedure section 2031.030. The party whom the request is propounded upon is required to respond within 30 days after service of a demand, but the parties are allowed to informally agree to an extension and confirm any such agreement in writing. (Code Civ. Proc., § 2031.060, subd. (a); Code Civ. Proc., § 2030.060, subd. (a); Code Civ. Proc., § 2031.070, subd. (a) - (b); Code Civ. Proc., § 2030.070, subd. (a) - (b)). A party must respond to interrogatories and document requests under oath. (Code Civ. Proc., §§ 2020.010(a), 2030.210(a); 2031.250(a)). An unverified discovery response is treated as no response. (<i>Steele v. Totah</i> (1986) 180 Cal.App.3d 545, 549; <i>Appleton v. Sup. Ct.</i> (1988) 206 Cal.App.3d 632, 636-37). In such a case, the propounding party may seek to compel verified responses. (<i>Id.</i>). Code of Civil Procedure section 2015.5 provides that a verification must be signed under penalty of perjury and state the date and place of execution. “[C]ourts do not find compliance with section 2015.5 to be both substantial and sufficient unless all statutory conditions appear

on the face of the declaration in some form.” (*Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601, 612).

If a party fails to serve a timely response to an inspection demand, the party making the demand may move for an order compelling a response to the inspection demand. (Code Civ. Proc., § 2031.300, subd. (b)). A party who fails to provide a timely response waives any objection, including one based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a); Code Civ. Proc., § 2030.290, subd. (a)).

III. ANALYSIS

Here, Plaintiff served initial discovery including RFPD, set one on January 21, 2026 on the defendant’s then attorney of record. (Declaration of Sarraill ¶ 3; Exhibit A). On February 23, 2026, the defendant’s counsel requested an extension to serve responses to March 10, 2026, which Plaintiff’s granted. (Exhibit C attached to Declaration of Sarraill). Defendants served unverified responses on March 9, 2026, with a page noting “verification to follow.” (Declaration of Sarraill ¶ 4; Exhibit B). On May 15, 2026, Plaintiff’s counsel submitted an email to defense stating she would seek a motion to compel unless verifications were provided by May 22, 2026. (Exhibit C). No verifications were provided at the time of the filing of the present motion. (Declaration of Sarraill ¶ 6).

Subsequently, in June 2026, Defendants’ counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted.

Nearly six months have lapsed since responses RFPD were served without verification, which is required. An unverified discovery response is treated as no response. (*Steele v. Totah, supra*, 180 Cal.App.3d at 549).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court GRANTS the motion to compel verifications to the RFPD, set one.

IV. SANCTIONS

The court shall impose a monetary sanction against the party who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demand for production of documents unless the party subject to the sanction acted with substantial justification or the sanction would otherwise be unjust. (Code of Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d)).

Plaintiff’s counsel requests sanctions in the amount of \$660.00 because Defendant failed to provide verified response to RFPD that resulted in the instant motion. Plaintiff’s counsel seeks two hours for work expended on this motion and an anticipated hour for appearing on the motion at the hourly rate of \$200.00. Plaintiff’s counsel seeks \$60.00 for costs expended on filing this motion.

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court GRANTS two hours of time expended on the motion at the requested hourly rate of \$200.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$460.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel verified responses to RFPD, set one. The Defendant is to provided verifications to the response to RFPD he served on March 9, 2026 within twenty (20) days from this hearing. The Court GRANTS sanctions against Defendant Collins in the amount of \$460.00. Defendant is to pay the sanctions amount within twenty (20) days from this hearing.

The Court will prepare the formal Order.

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Calendar Line # 9
Case Name Salvador Ortiz vs General Motors LLC
Case No. 25CV480281
Motion for Attorneys’ Fees and Costs <u>I. BACKGROUND</u> This case stems from a Complaint under the Song-Beverly Act that was filed on November 18, 2025 regarding Plaintiff Salvador Agabo Ortiz’s (“Ortiz”) 2025 2011 Chevrolet Equinox EV, vehicle identification number 3GN7DSRP7SS241927 (“Subject Vehicle”) against General Motors, LLC (“GM”). (Complaint). On May 4, 2026, Plaintiff Ortiz accepted Defendant GM’s offer to compromise, under Code of Civil Procedure section 998 to repurchase the Subject Vehicle in the amount of \$56,000.00 inclusive of loan payoff and all actual damages. (Declaration of Bryan M. Geoulla, ¶¶42-44; Exhibit 1). Before the court is Plaintiff’s motion for attorneys’ fees and costs that was filed on July 13, 2026. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on that same day. Plaintiff seeks an Order awarding her attorneys’ fees in the amount of \$24,549.50 and costs in the amount of \$1,413.01 for a total amount of \$25,962.51. Plaintiffs do not seek an enhancer int his matter and no evidence was proffered regarding a multiplier. Defendant GM filed an opposition papers on August 19, 2026. Plaintiff filed a reply brief on August 24, 2026. The Court has carefully reviewed the following: Plaintiff’s notice of motion and memorandum of points and authorities (totaling 19 pages), Declaration of Bryan M. Geoulla and attached Exhibits 1-3 (totaling 47 pages); Declaration of Ryan Aaron Youbian (totaling 4 pages); Declaration of Michael Josephson (totaling 5 pages); Declaration of Erik Khorovsky (totaling 4 pages); GM’s Opposition (totaling 16 pages); Declaration of Ryan Kay in support of the Opposition and attached Exhibits A-D (totaling 42 pages); Plaintiff’s Reply brief (totaling 11 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> A. ATTORNEY’S FEES Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney’s fees when authorized by contract, statute, or law. (<i>See also</i>, Civ. Code § 1717(a)). “A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney’s fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit.” (<i>Bowman v. City of Berkeley</i> (2005) 131 Cal.App.4th 173, 178). The Song-Beverly Act provides, “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d)). Thus, the statute includes a “reasonable attorney’s fees” standard. The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (<i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 559). “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of